

Opinion of SOTOMAYOR, J.

Fourth Amendment law enforcement sphere where it is needed most. See *Ziglar*, 582 U. S., at 135.⁵

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The Court further proclaims that Congress has provided alternative remedies that “independently foreclose” a *Bivens* action in this case. *Ante*, at 497. The administrative remedy the Court perceives, however, is no remedy whatsoever.

The sole “remedy” the Court cites is an administrative grievance procedure that does not provide Boule with any relief. The statute on which the Court relies provides: The “Secretary of Homeland Security . . . shall have control, direction, and supervision of all employees and of all the files and records of [CBP].” 8 U. S. C. §1103(a)(2); see *ante*, at 497. Administrative regulations direct CBP to investigate alleged violations of its own standards by its own employees. See 8 CFR §§287.10(a)–(b).⁶ The Court sees fit to defer to this procedure, even while acknowledging that complainants in Boule’s position have no right to participate in the proceedings or to seek judicial review of any determination. *Ante*, at 496–497. The Court supports its conclusion that

⁵To the extent the Court’s decision may be motivated by fears that allowing this *Bivens* action to proceed will open the floodgates to countless claims in the future, cf. *ante*, at 499, that concern is overblown. The doctrine of qualified immunity will continue to protect government officials from liability for damages unless a plaintiff “pleads facts showing (1) that the official violated a statutory or constitutional right, and (2) that the right was ‘clearly established’ at the time of the challenged conduct.” *Wood v. Moss*, 572 U. S. 744, 757 (2014) (quoting *Ashcroft v. al-Kidd*, 563 U. S. 731, 735 (2011)).

⁶The regulations require any investigative report regarding excessive force to “be referred promptly for appropriate action in accordance with the policies and procedures of the Department [of Homeland Security].” 8 CFR §287.10(c). Those policies and procedures, in turn, explicitly establish no “right or benefit, substantive or procedural, enforceable at law or in equity.” Dept. of Homeland Security, Dept. Policy on the Use of Force, §X, Policy Statement 044–05 (Sept. 7, 2018).